

Amendment No. 1 to SB2178

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2178

House Bill No. 1787*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-13-514, is amended by deleting subdivision (a)(2) and substituting:

(2) When a person patronizes prostitution where the subject of the offense is:

(A) A law enforcement officer;

(B) A law enforcement officer eighteen (18) years of age or older posing as a minor;

(C) A person who has an intellectual disability; or

(D) A person who is less than eighteen (18) years of age.

SECTION 2. Tennessee Code Annotated, Section 39-13-514, is amended by deleting subsection (b) and substituting:

(b)

(1) Patronizing prostitution under subsection (a)(1) or subdivision

(a)(2)(A) is a Class A misdemeanor.

(2) Patronizing prostitution under subdivision (a)(2)(B) or (a)(2)(C) is a Class B felony.

(3) Patronizing prostitution under subdivision (a)(2)(D) is a Class A felony.

(4) Patronizing prostitution within one and one-half (1.5) miles of a school shall, in addition to any other authorized punishment, be punished by no less

than seven (7) days of incarceration and by a fine of not less than one thousand dollars (\$1,000).

(5) This section does not prohibit prosecution under any other applicable law.

SECTION 3. Tennessee Code Annotated, Section 39-13-314(a)(1)(D), is amended by deleting the subdivision and substituting:

(D) Patronizing prostitution, under § 39-13-514(a)(2)(B), (C), or (D);

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.